

22VECV01536 22VECV01536

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C06%2F30%2F2026

Source SHA-256: 9914c1685fa0194103f4a89051f41ecf1cbaaed1f2819231485cf0a4f8b5a662

Case Number: 22VECV01536 Hearing Date: June 30, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Alen

Cohen, et al.,

Plaintiffs.

v.

Moshe

Zemach, et al.,

Defendants.

Case Number Department

22VECV01536 107

COURT'S [TENTATIVE]

ORDER RE: ז

Motion for Leave to Withdraw and/or Amend Admissions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

October 11, 2022, Plaintiffs Alen Cohen and Nastran Cohen ("Plaintiffs") filed a complaint against Defendants Moshe Zemach, David Zemach, Maya Librush, Oded Zemach, Livinit Up, LLC, Urbinconstruction Services LLC, IO Lifetime Builders, Inc., Chai Group, LLC, Serrano Demolition, Inc., Expert Decking and Waterproofing, Inc., the Ohio Casualty Insurance Company, and Does 1 to 50 ("Defendants"), alleging sixteen causes of action.

On

January 3, 2023, Cross-Complainant Expert Decking and Waterproofing, Inc. filed a cross-complaint against Cross-Defendants Roes 1 through 100, alleging causes of action for: (1) equitable indemnity; (2) contribution; (3) comparative fault; and (4) declaratory relief.

On

February 24, 2023, Cross-Complainant the Ohio Casualty Insurance Company filed a cross-complaint against Cross-Defendants Expert Decking, Alen Cohen, Nastran Cohen and Roes 1 through 75, alleging an interpleader cause of action.

On

March 21, 2023, Plaintiffs filed a first amended complaint against Defendants alleging sixteen causes of action.

On

April 11, 2023, Plaintiffs filed an amendment to complaint identifying Defendant Doe 1 as Urbino Construction LLC.

On

April 27, 2023, Plaintiffs filed an amendment to complaint identifying Defendant Doe 16 as Expert Decking.

On

April 21, 2023, Cross-Complainants Moshe Zemach, David Zemach, and Livinit Up, LLC filed a cross-complaint against Cross-Defendants Serrano Demolition, Inc., Expert Decking and Waterproofing, Inc., James West, and Roes 1 through 50, alleging causes of action for: (1) equitable indemnity; (2) contribution; and (3) declaratory relief.

On

May 15, 2024, Plaintiffs filed an amendment to complaint identifying Doe 17 as Waterproofing Experts, Inc.

On

August 21, 2024, Plaintiffs filed a request to dismiss Defendants Maya Librush, Oded Zemach, and IO Lifetime Builders, Inc. Dismissal as to those Defendants was entered on August 21, 2024. (Request for Dismissal p. 1.)

On

December 13, 2024, Cross-Complainant the Ohio Casualty Insurance Company filed an amendment to cross-complaint identifying Cross-Defendant Roe 6 as Nicholas Astor.

On

March 12, 2026, Defendant Water Proofing Experts, Inc. ("WPE") filed a motion for leave to withdraw and/or amend admissions deemed admitted by court order (CCP section 2033.300) (the "First Motion"). On April 7, 2026, the court denied the First Motion because WPE had not moved to reopen discovery. (04/07/26 Minute Order p. 8.)

On

April 10, 2026, WPE filed a motion to reopen discovery pursuant to Code of Civil Procedure section 2024.050 and continue trial date pursuant to California Rules of Court, rule 3.1332 (the "Motion to Reopen Discovery"). On April 17, 2026, the court granted the request to continue the trial date and deferred ruling on the request to reopen discovery. (04/17/26 Minute Order.) On April 27, 2026, the court granted WPE's request and reopened discovery. (04/27/26 Minute Order.)

On

April 15, 2026, WPE filed a motion for judgment on the pleadings (the "Motion for Judgment on the Pleadings"). On May 19, 2026, the court granted the Motion

for Judgment on the Pleadings and granted Plaintiffs leave to amend. (05/19/26 Minute Order p. 8.)

On

May 1, 2026, WPE filed a motion for leave to withdraw and/or amend admissions deemed admitted under Code of Civil Procedure section 2033.300 (the "Motion").

On June 16, 2026, Plaintiffs filed an opposition. On June 23, 2026, WPE filed a reply.

On

June 18, 2026, Plaintiffs filed a second amended complaint against Defendants, alleging causes of action for: (1) breach of contract: RPA; (2) breach of contract: additional warranty agreement; (3) negligence; (4) negligence; (5) negligence; (6) breach of express warranty; (7) breach of implied warranty; (8) violations of Civil Code sections 895, et seq.; (9) intentional misrepresentation; (10) negligent misrepresentation; (11) promissory fraud; (12) breach of contract; (13) breach of contract; (14) recovery on contractor's bond; (15) declaratory relief; and (16) rescission of the RPA.

II.

PLAINTIFFS'

REQUEST FOR JUDICIAL NOTICE

Plaintiffs

request the court take judicial notice of various documents in this matter's file. (Plaintiffs' Request for Judicial Notice p. 2.)

The

court need not take judicial notice of documents in this matter's file.

Plaintiffs' requests are denied.

III.

LEGAL

STANDARD

Code

of Civil Procedure section 1008, subdivision (b) states:

A party who originally

made an application for an order which was refused in whole or part, or granted

conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. For a failure to comply with this subdivision, any order made on a subsequent application may be revoked or set aside on ex parte motion.

“A

party filing a renewed application must, among other things, submit an affidavit showing what ‘new or different facts, circumstances, or law are claimed’ [citation] to justify the renewed application, and show diligence with a satisfactory explanation for not presenting the new or different information earlier[.]” (Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (“Even Zohar”) (2015) 61 Cal.4th 830, 833.)

IV.

DISCUSSION

WPE

moves for an order granting WPE leave to withdraw and/or amend the requests for admission deemed admitted by the court’s prior order. (Motion p. 2.)

WPE

argues this is not a motion under Code of Civil Procedure section 1008, subdivision (b) because that code section “applies only where a court has previously ruled on the merits of the issue presented.” (Motion p. 8.) WPE cites no authority for this argument. (Motion p. 8.)

In

opposition, Plaintiffs argue the court has no jurisdiction to decide the Motion because this a renewed motion brought under Code of Civil Procedure section 1008, subdivision (b), WPE disclaims Code of Civil Procedure section 1008, subdivision (b), and fails to make the required showing of diligence. (Opposition p. 6.)

In

reply, WPE argues Plaintiffs’ argument is incorrect because it “rests on the mistaken premise that this Court has already decided the merits of WPE’s request for relief under Code of Civil Procedure section 2033.300” which the

court has not. (Reply p. 6.) WPE notes the court declined to reach the merits when WPE first moved to withdraw the deemed admissions. (Reply p. 6.) WPE argues it followed the court's direction and moved to obtain relief under Code of Civil Procedure section 2024.050. (Reply p. 6.) WPE states: "[a]fter full briefing, the Court granted WPE's motion to reopen discovery, expressly ordering that the motion to withdraw the deemed admissions could now 'be heard and decided on its merits.'" (Reply p. 6.) WPE also argues:

[S]ection 1008 governs

motions asking a court to reconsider a ruling it has already made. It does not apply where, as here, the Court expressly reserved the merits, directed WPE to satisfy a procedural prerequisite, and later granted relief so that the merits motion could proceed. In any event, the circumstance that now permits this motion — the Court's April 27, 2026 order reopening discovery — did not exist when the prior motion was heard, removing any colorable basis for applying section 1008 here.

(Reply

p. 6.) WPE argues that the authority Plaintiffs cite "all involve successive motions seeking reconsideration of issues already decided." (Reply p. 6.) Finally, WPE argues that Plaintiffs' reliance on *Deauville Restaurant, Inc. v. Superior Court* ("Deauville") (2001) 90 Cal.App.4th 843 is misplaced because it "held that a second application is not a motion for reconsideration governed by section 1008 where the court's first denial rested on a procedural or evidentiary defect rather than the merits, and the later application does not ask the court 'to reconsider the matter and modify, amend, or revoke the prior order.'" (Reply p. 7.) WPE notes that "[t]he court emphasized that a party's 'request for the same relief' in the later application 'does not transform the second application into a motion for reconsideration.'" (Reply p. 7.) WPE argues that it "did not circumvent section 1008; it complied with the Court's directive and followed the procedural path the Court's own orders established." (Reply p. 7.)

WPE's

reply appears to confuse or conflate Code of Civil Procedure section 1008, subdivisions (a) and (b). WPE also misconstrues the holding of *Deauville*, supra, 90 Cal.App.4th 843 and Plaintiffs' reliance on that case.

Code

of Civil Procedure section 1008, subdivision (a) governs motions for

reconsideration. (Deauville, supra, 90 Cal.App.4th at p. 867.) That subdivision contains distinct requirements, including that the same judge hear the motion. (Id.)

In contrast, Code of Civil Procedure section 1008, subdivision (b) governs renewed motions. (Deauville, supra, 90 Cal.App.4th at p. 865.)

WPE

appears to be relying on Deauville, supra, 90 Cal.App.4th to argue Code of Civil Procedure section 1008 does not apply here at all because the motion in that case did not ask the court to reconsider the matter and modify, amend or revoke the prior order. That argument misses the point. The Court of Appeal in Deauville did not hold that neither subdivisions (a) nor (b) of Code of Civil Procedure section 1008 applied to the motion at issue in that case because it did not request the court reconsider the matter and modify, amend, or revoke the prior order, the Court held that the motion was more akin to a renewed motion under Code of Civil Procedure section 1008, subdivision (b), than a motion for reconsideration under subdivision (a), because the court did not consider the merits of the first application and it was denied based on evidentiary defects. (Id. at pp. 866-867.)

Thus, the court interprets the Court's position in Deauville to be that where a second application is brought which does not ask the court to reconsider the matter and modify, amend, or revoke the prior order, but does seek the same relief as the original motion, that second application is a renewed motion brought under Code of Civil Procedure section 1008, subdivision (b), as opposed to a motion for reconsideration under Code of Civil Procedure section 1008, subdivision (a). (Deauville, supra, 90 Cal.App.4th at pp. 866-867.)

In Deauville, supra, 90 Cal.App.4th at p. 865, the trial court denied the first motion for an attachment order and application for writ of attachment by sustaining objections to the evidence and denying the first application based on evidentiary rulings. The party then deposed witnesses and brought a second motion and application for an order and writ of attachment. (Id.) "The second application did not challenge the court's ruling on the first application" and did not "ask the court to reconsider, revoke or modify the prior ruling." (Id.)

The

circumstances here are analogous to the circumstances in Deauville.

Here, the court denied WPE's First Motion because WPE had not moved to reopen discovery. (04/07/26 Minute Order p. 8.) WPE is not challenging the April 7, 2026, ruling. WPE is also not asking the court to reconsider, revoke, or modify the April 7, 2026, ruling.

"A

party renews a motion by 'making a subsequent application for the same order based on new or different facts, circumstances, or law. [Citation.] Both the original and renewed motions must request 'identical relief.'" (Doe v. Westmont College (2021) 60 Cal.App.5th 753, 761, original italics, brackets removed.)

In

the First Motion, WPE moved for an order granting WPE leave to withdraw and/or amend its admissions, relieve WPE from the court's April 7, 2025, order deeming the RFAs admitted, and authorize WPE to serve the proposed responses. (First Motion p. 2.) Likewise, here, WPE moves for an order granting WPE leave to withdraw and/or amend the admissions deemed admitted by prior court order. (Motion p. 2.) Thus, in both WPE's First Motion and the present Motion, WPE requests identical relief. The court concludes this is a renewed motion brought under Code of Civil Procedure section 1008, subdivision (b), and not a motion for reconsideration brought under Code of Civil Procedure section 1008, subdivision (a).

Having

concluded Code of Civil Procedure section 1008, subdivision (b) applies here, the court considers whether WPE satisfies subdivision (b)'s requirements.

"A

party filing a renewed application must, among other things, submit an affidavit showing what 'new or different facts, circumstances, or law are claimed' [citation] to justify the renewed application, and show diligence with a satisfactory explanation for not presenting the new or different information earlier." (Even Zohar, supra, 61 Cal.4th at p. 833.)

WPE

argues that even if the court concludes Code of Civil Procedure section 1008,

subdivision (b) applies here, it satisfies the statute's requirements that post-date the court's April 7, 2026, order. (Motion p. 8.) WPE lists four circumstances. First, "the Court's April 17, 2026 finding of good cause to continue trial based on WPE's substitution of new counsel[.]" (Motion p. 8.) Second, "the April 27, 2026 order granting the motion to reopen discovery[.]" (Motion p. 8.) Third, "the failure of the April 22, 2026 mediation to resolve the matter[.]" (Motion p. 8.) And fourth, "Plaintiffs' lead trial counsel's on-the-record concession on April 9, 2026 that the deemed admissions are the only evidence Plaintiffs have against WPE[.]" (Motion p. 8.)

The

court is not persuaded the court's continuing the trial date, the parties' failure to resolve the matter in mediation, and Plaintiffs' counsel's admission the deemed admissions are the only evidence Plaintiffs have against WPE have any bearing on this matter. None of these circumstances are new or different facts, circumstances, or law that support the renewed application.

The

final issue is whether the court's order granting the motion to reopen discovery constitutes a new or different fact, circumstance, or law that justifies the renewed application. However, even if the court concludes the order reopening discovery constitutes a new or different fact, circumstance, or law that justifies the renewed application, Code of Civil Procedure section 1008, subdivision (b) also requires the party to "show diligence with a satisfactory explanation for not presenting the new or different information earlier[.]" (Evan Zohar, *supra*, 61 Cal.4th at p. 833.)

Moving

for an order to reopen discovery was a prerequisite for WPE to move to withdraw or amend its admissions. (See 04/07/26 Minute Order.) WPE's Motion contains no argument suggesting it has shown diligence and a satisfactory explanation for not presenting the new or different information at an earlier time. (Motion p. 8.)

In

opposition, Plaintiffs argue WPE fails to show diligence noting "WPE could have filed before the cutoff, or moved to reopen it along with its initial filing—thereby averting the need for the same relentless, successive motion practice the Legislature sought to curtail." (Opposition pp. 13-14.)

In

reply, WPE repeats its argument that Code of Civil Procedure section 1008 does not apply here, but points to no evidence in the record suggesting WPE acted with diligence. (Reply pp. 6-7.)

Thus,

the court concludes WPE has not shown diligence to satisfy Code of Civil Procedure section 1008, subdivision (b).

Finally,

in reply WPE argues it “did not circumvent section 1008; it complied with the Court’s directive and followed the procedural path the Court’s own orders established.” (Reply p. 7.) Similarly, in the Motion, WPE argues that it filed the motion to reopen discovery one day after the court’s “April 9, 2026 directive to do so” and “[a]t each stage, new counsel acted diligently within the constraints of the Court’s calendar and procedural directives.” (Motion p. 10.)

To

the extent WPE is arguing the Motion is proper because the court directed WPE to file it, the court disagrees. The court denied the First Motion because Defendant had not moved to reopen discovery. (04/07/26 Minute Order p. 8.) The court subsequently found the factors set forth in Code of Civil Procedure section 2024.050 weighed in favor of granting the Motion to Reopen Discovery as it related to WPE’s Motion to Withdraw and/or Amend Admissions Deemed Admitted by Court Order and for additional discovery directed at WPE’s role. (04/27/26 Minute Order.) The court expressly stated in the April 27, 2026, order that it denied the request to withdraw admissions because there was no motion pending with that request before the court. (04/27/26 Minute Order p. 2.) Thus, the court’s order denying the First Motion was limited to finding Defendant had not moved to reopen discovery. The court’s order granting the Motion to Reopen Discovery was limited to whether the factors set forth in Code of Civil Procedure section 2024.050 weighed in favor of granting the Motion to Reopen Discovery. The court in those orders took no position on the present Motion or the applicability of Code of Civil Procedure section 1008, nor did it direct WPE to file the present Motion.

V.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: June 30, 2026 Hon. Eric Harmon

Judge

of the Superior Court